

LAW AND MOTION TENTATIVE RULINGS

DATE: JULY 2, 2026 TIME: 8:30 A.M.

TENTATIVE RULINGS ARE NOT POSTED IN UNLAWFUL DETAINER CASES

Notice to prevailing parties: Local Rule 2.10.01 requires you to submit a proposed formal order incorporating, verbatim, the language of any tentative ruling – or attaching and incorporating the tentative by reference - or an order consistent with the announced ruling of the Court, in accordance with California Rule of Court 3.1312. **Such proposed order is required even if the prevailing party submitted a proposed order prior to the hearing with two exceptions: (1) in unopposed matters where the moving party has provided a detailed proposed order or JCC form of order, or (2) where the tentative is simply to “grant”.** Failure to comply with Local Rule 2.10.01 may result in the imposition of sanctions following an order to show cause hearing, if a proposed order is not timely filed.

No. 25CV00633

COUNTY OF SANTA CRUZ, et al. v. FINSAND, et al.

**DEFENDANT JRG ATTORNEYS AT LAW’S DEMURRER TO AND MOTION
TO STRIKE FIRST AMENDED CROSS-COMPLAINT**

The demurrer is sustained without leave to amend as to the first and second causes of action (rescission and fraud). The demurrer as to the third, fourth and sixth causes of action (breach of fiduciary duty, negligence, elder abuse) as to Benjaporn Finsand are sustained without leave to amend. As to Jeffrey Finsand, the demurrer is overruled as to the third and fourth causes of action (breach of fiduciary duty, negligence), and sustained with leave to amend as to the fifth, sixth, and seventh causes of action.

I. BACKGROUND

Defendants Jeffrey Finsand, Benjaporn Finsand, and Donald C. Schwartz’s (“defendants”) first amended cross-complaint was filed December 18, 2025, and alleges seven causes of action against cross-defendants JRG Attorneys at Law, Law Offices of Rice, Luxon, and Bolster-Grant, Benjamin Frederick Rice, Jr. and M. Allen Hopper related to their allegedly negligent and fraudulent legal work.

Cross-defendant JRG Attorneys at Law filed its demurrer to the initial cross-complaint on November 17, 2025. A joinder was filed on December 9, 2025, by cross-defendant Frederick Benjamin Rice, Jr. The first amended cross-complaint (“FACC”) was filed before hearing on that

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earlier demurrer, mooting the hearing. Cross-defendant thereafter filed this renewed demurrer and motion to strike.¹

Defendants' opposition and Mr. Schwartz's joinder were filed one court day late but failed to acknowledge or seek leave for the late filings. The Court continued this hearing from June 18, 2026, to afford time to review them.

II. DISCUSSION

For purposes of a demurrer, all properly pled facts and inferences from expressly alleged facts are deemed true. (*Sheehan v. San Francisco 49ers, Ltd.* (2009) 45 Cal.4th 992, 998; *Cundiff v. GTE Cal., Inc.* (2002) 101 Cal.App.4th 1395, 1405.) If the complaint states a cause of action under any theory, regardless of the title under which the factual basis for relief is stated, that aspect of the complaint is good against a demurrer. "[W]e are not limited to plaintiffs' theory of recovery in testing the sufficiency of their complaint against a demurrer, but instead must determine if the *factual* allegations of the complaint are adequate to state a cause of action under any legal theory." (*Quelimane Co. v. Stewart Title Guaranty Co.* (1998) 19 Cal.4th 26, 38.) To survive a demurrer, the complaint need only allege facts sufficient to state a cause of action; each evidentiary fact that might eventually form part of the plaintiff's proof need not be alleged. (*C.A. v. William S. Hart Union High School Dist.* (2012) 53 Cal. 4th 861, 872.) The complaint is to be given a reasonable interpretation and read in context. (See *Schifando v. City of Los Angeles* (2003) 31 Cal.4th 1074, 1081.) A "demurrer does not, however, admit contentions, deductions or conclusions of fact or law alleged in the pleading, or the construction of instruments pleaded, or facts impossible in law." (*S. Shore Land Co. v. Petersen* (1964) 226 Cal.App.2d 725, 732 (internal citations omitted).)

A. Rescission

Defendants seek rescission of the fee agreement. However, rescission is a remedy and not a cause of action and is not available where the services in the agreement have already been rendered. (*Nakash v. Superior Court* (1987) 196 Cal.App.3d 59, 70.) Defendants concede their FACC is unsupported by sufficient facts since they state "[w]ith leave to amend this written document can be attached to a Second Amended Cross-Complaint." Yet these parties have now had two opportunities to adequately plead some version of a breach of contract cause of action and they now acknowledge their failure to adequately do so twice. The Court is not inclined to allow further amendment attempts.

¹ Cross-defendant Frederick Benjamin Rice, Jr. filed a joinder to this demurrer and motion to strike on June 18, 2026.

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B. *Fraud*

The FACC fails to articulate fraud. Instead, it describes Mr. Finsand's belief he would be represented by a particular attorney, but instead was represented by a different one without any explanation. This amounts to miscommunication, not fraud. Further, the alleged failure by Mr. Rice to disclose his wife worked for the County of Santa Cruz fails to amount to fraud since the alleged "omissions" fail to support any intent to defraud. (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 638.) (FACC ¶¶ 16-21.) Again, these parties have now had two opportunities to adequately plead fraud and they have failed to do so twice. The Court is not inclined to allow further amendment attempts.

C. *Breach of fiduciary duty*

There are no facts supporting any breach of fiduciary duty claim as to Benjaporn Finsand, wife of defendant Jeffrey Finsand. There are no facts that she was also a client, and therefore, this cause of action fails as to her. Her loss of consortium damages also fail; emotional distress damages are ordinarily not recoverable in a legal malpractice action if the representation concerns primarily the economic interests of the client. (*Kaushansky v. Stonecroft Attorneys, APC* (2025) 109 Cal.App.5th 788, 806; see *Mosier v. Southern California Physicians Insurance Exchange* (1998) 63 Cal.App.4th 1026, 1049-1050 ["The measure of damages in a case predicated on legal malpractice 'is the difference between what was recovered and what would have been recovered but for the attorney's wrongful act or omission.'"]).

As for defendant Jeffrey Finsand, the fiduciary duty claim is adequately pled since he alleges the existence of a fiduciary relationship, its breach, and damage proximately caused by that breach.

D. *Negligence*

Defendants have adequately pled negligence as to Jeffrey Finsand; that claim is adequately pled at this stage. However, as to Benjaporn Finsand, the demurrer is sustained without leave to amend; she was not a client of cross-defendant and no duty is owed to her.

E. *Unfair competition*

As for the fifth cause of action for unfair competition, The Unfair Competition Law prohibits "any unlawful, unfair, or fraudulent business act or practice." (*Clark v. Superior Court* (2010) 50 Cal.4th 605, 610.) As a statutory claim, the facts supporting the elements of the claim must be pled with particularity. (*Khoury v. Maly's of California, Inc.* (1993) 14 Cal.App.4th 612, 619.) "An unlawful business practice or act is an act or practice, committee pursuant to business activity, that is at the same time forbidden by law." (*Klein v. Earth*

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Elements, Inc. (1997) 59 Cal.App.4th 965, 963.) A business practice is unfair within the meaning of the UCL if it violates established public policy or if it is immoral, unethical, oppressive or unscrupulous and causes injury to consumers which outweighs its benefits. (*McKell v. Washington Mutual, Inc.* (2006) 142 Cal.App.4th 1457, 1473.) Whether a practice is fraudulent “is not based upon proof of the common law tort of deceit or deception but is instead premised on whether the public is likely to be deceived.” (*Pastoria v. Nationwide Ins.* (2003) 112 Cal.App.4th 1490, 1499.)

Defendant’s FACC fails to identify any facts of an unlawful, unfair, or fraudulent business act or practice. As such, the demurrer is sustained with leave to amend.

F. *Elder abuse*

Cross-defendant contends that Jeffrey Finsand was not 65 or older at the time of their representation. However, cross-defendant fails to provide any evidence that can be judicially noticed related to Mr. Finsand’s age. Despite this, the Court finds the cause of action lacks any factual support, and is instead based entirely on legal conclusions. Therefore, the demurrer will be sustained with leave to amend.

As for Benjaporn Finsand, the demurrer is sustained without leave to amend since she was not a client of cross-defendant and therefore there is no possibility she can establish the elements of financial elder abuse.² (Welf. & Inst. Code, § 15610.30; CACI 3100.)

G. *Declaratory relief*

This cause of action is likewise deficient. Defendants fail to plead any facts supporting an actual controversy. (FACC ¶¶ 44-46.) The demurrer is therefore sustained with leave to amend.

H. *Motion to strike*

Since the Court has allowed amendment for some of defendants’ claims, the motion to strike is denied as moot.

² (1) Defendant took/hid/appropriated/obtained/retained plaintiff’s property, or assisted in same; (2) plaintiff was 65 years of age or older/a dependent adult at the time of the conduct; (3) defendant took/hid/appropriated/obtained/retained]/assisted in taking/hiding/appropriating/obtaining/retaining the property for a wrongful use/with the intent to defraud/by undue influence; (4) plaintiff was harmed; and (5) defendant’s conduct was a substantial factor in causing plaintiff’s harm.

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No. 21CV00575

BANK OF AMERICA, N.A. v. CORNEJO

(UNOPPOSED) PLAINTIFF BANK OF AMERICA'S MOTION FOR ENTRY OF JUDGMENT PURSUANT TO STIPULATION (CCP § 664.6)

Pursuant to Code of Civil Procedure section 664.6 and the settlement agreement between the parties (Forbes Declaration, Exhibit 1), judgment in the sum of \$7,977.81 will be entered in favor of plaintiff and against defendant Mael Alejandro Cornejo. The Court will sign the proposed orders submitted by plaintiff.

No. 22CV02837

DOE v. SANTA CRUZ CITY SCHOOLS

PLAINTIFF'S MOTION TO SET ASIDE DISMISSAL

The motion is denied.

A first amended complaint ("FAC") was filed on August 13, 2023. Plaintiff asserts he was a victim of childhood sexual abuse. He argues the perpetrator, Steven Myers, was employed by Defendant Santa Cruz City Schools ("District" or "SCCS"). Myers worked at Branciforte Middle School. Myers had a meeting with plaintiff and his parents, and Myers recommended that plaintiff participate in the Traveling School Summer Program, which Myers supervised and was part of the District. (FAC at ¶ 19.) Based upon Myers's recommendation, plaintiff participated in the Traveling School Summer Program in 1983. It was at this time plaintiff alleges he was groomed for abuse, sexually assaulted, and abused by Myers. (FAC at ¶ 18.) Causes of action alleged are (1) childhood sexual abuse as to Myers, (2) intentional infliction of emotional distress as to Myers, (3) negligent hiring, supervision, and retention of unfit employee pursuant to Government Code sections 815.2 and 820 against SCCS, (4) failure to report suspected child abuse pursuant to Government Code sections 815.2, 815.6, and 820 against SCCS, (5) negligent supervision of minor pursuant to Government Code sections 815.2 and 820 against SCCS, and (6) negligence against Does 41-50.

On June 12, 2025, this Court granted plaintiff's counsel's motion to be relieved. Plaintiff did not retain new counsel. Following three orders to show cause requiring plaintiff's appearance, and plaintiff's failure to appear, this Court finally dismissed the action with prejudice on May 14, 2026.